

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

OAC Case No. 2013-0002

Case No. 2013-179

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING MELISSA
MILLIGAN, LPC-5870

Respondent.

The State Board of Licensed Professional Counselor Examiners (the "Board"), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge ("ALJ") in accordance with the provisions of Article 43, Title 12, of the Mental Health Practice Act, of the Colorado Revised Statutes ("Act") and the Administrative Procedures Act ("APA"), and having reviewed the ALJ's Initial Decision, hereby enters the following findings and order:

BACKGROUND

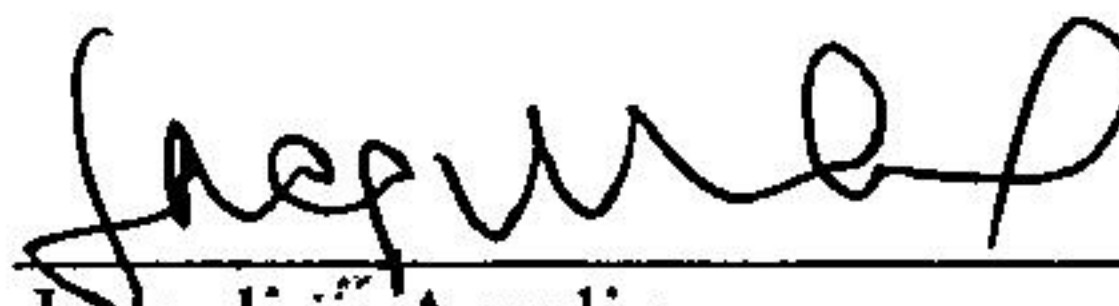
1. Respondent Melissa Milligan ("Respondent") was licensed as a professional counselor on September 29, 2010 and was issued license number 5870.
2. On or about January 17, 2013, the Board received a complaint regarding Respondent's conduct as a Licensed Professional Counselor in Colorado.
3. On July 17, 2013, an Emergency Meeting was conducted which determined that Respondent was unable to practice with reasonable skill and safety to clients.
4. The Board issued a summary suspension to Respondent on July 17, 2013.
5. Respondent was served with a Notice of Charges on or around July 29, 2013.
6. A Motion for Entry of Default was filed on August 29, 2013; the ALJ's Entry of Default was mailed on September 23, 2013.
7. The Initial Decision of the ALJ was rendered and received by the Board on October 29, 2013. A copy of the Initial Decision is attached to this Order. The Initial Decision, as modified by this Order, is incorporated herein by reference.

9. Neither the Board's prosecuting attorney nor Respondent filed exceptions.
10. Upon review of the Initial Decision and Record, the Board hereby.
 - a. Accepts Findings of Fact, Paragraphs 1 through 5.
 - b. Adopts Conclusions of Law, Paragraphs 1 through 12.
 - c. Adopts the recommended sanction in the last paragraph.

IT IS THEREFORE ORDERED by the Board that Respondent's license as a professional counselor is revoked from the effective date of this Final Board Order. The Final Board Order is hereby effective upon signature.

SO ORDERED this 13th day of February, 2014.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



Jacqueline Arcelin
Program Director

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 633 17th Street, Suite 1300, Denver, Colorado 80202	▲ COURT USE ONLY ▲
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. MELISSA MILLIGAN, LPC, License No. 5870, Respondent.	
INITIAL DECISION UPON DEFAULT	

This case is a disciplinary proceeding before the State Board of Licensed Professional Counselor Examiners ("the Board") involving the license of Melissa Milligan ("Respondent") to practice as a professional counselor. The Board was represented by Robert Finke, Assistant Attorney General, Business and Licensing Section. Respondent did not appear in this matter. Based upon Respondent's failure to file an answer to the Board's Notice of Charges, an Entry of Default was issued on September 23, 2013. Respondent then had ten (10) days to show good cause why the Entry of Default should be set aside. Section 24-4-105(2)(b), C.R.S. No motion to set aside the Entry of Default was filed, and this matter is ready for the issuance of an Initial Decision Upon Default on October 4, 2013.-

FINDINGS OF FACT

1. The last address furnished by Respondent to the Board is 2208 S. Eldridge Court, Lakewood, Colorado 80228.
2. Notice of the nature of this proceeding, the legal authority and jurisdiction under which it was held, and the matters of fact and law asserted were mailed to Respondent by first class mail to the address stated above on July 29, 2013.
3. The Board's Motion for Entry of Default was mailed to Respondent by first class mail to the address stated above on August 29, 2013.
4. The Administrative Law Judge's Entry of Default was mailed to Respondent by first class mail to the address stated above on September 23, 2013. Respondent did not file a motion to set aside the Entry of Default.

5. Respondent is deemed to have admitted the allegations in the Notice of Charges, which are incorporated herein as Findings of Fact.

CONCLUSIONS OF LAW

1. Respondent has received timely notice of the time, place, and nature of this hearing; of all matters of fact and law asserted; and of all matters required by Section 24-4-105(2)(a), C.R.S., in the manner required by that section.

2. The Board has jurisdiction over Respondent and over her license as a professional counselor.

3. Respondent is subject to discipline pursuant to Section 12-43-222(1)(g), C.R.S., because she acted in a manner that does not meet the generally accepted standards of the professional discipline under which she practices and/or failed to act in a manner that meets the generally accepted standards of the professional discipline under which she practices; specifically, she engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in Section 18-3-401, C.R.S., with a client during the period of time in which a therapeutic relationship existed or for up to two years after the period in which such a relationship existed.

4. Respondent is subject to discipline pursuant to Section 12-43-222(1)(i), C.R.S., because she maintained a relationship with a client that was likely to impair her professional judgment or increase the risk of client exploitation; specifically, she engaged in a sexual, intimate relationship with a client.

5. Respondent is subject to discipline pursuant to Section 12-43-222(1)(r), C.R.S., because she engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in Section 18-3-401, C.R.S., with a client during the period of time in which a therapeutic relationship existed or for up to two years after the period in which such a relationship existed.

6. Respondent is subject to discipline pursuant to Section 12-43-222(1)(b), C.R.S., because she violated a rule promulgated by the Board; specifically, she failed to update her address with the Board, which is a violation of Board Rule 8.

7. Respondent is subject to discipline pursuant to Section 12-43-222(1)(u), C.R.S., because she repeatedly failed to make essential entries on patient records; specifically, she failed to provide a mandatory disclosure, failed to document treatment sessions, and held "impromptu" sessions with her client that were not fully documented in the client's records.

8. Respondent is subject to discipline pursuant to Section 12-43-222(1)(b), C.R.S., because she violated a rule promulgated by the Board; specifically, she repeatedly failed to make essential entries on patient records, which is a violation of Board Rule 16.

9. Respondent is subject to discipline pursuant to Section 12-43-222(1)(h), C.R.S., because she performed services outside of her area of training, experience, or competence; specifically, she told her client to adjust his prescription medications.

10. Respondent is subject to discipline pursuant to Section 12-43-222(1)(l), C.R.S., because she failed to refer her client to an appropriate practitioner when the problem of her client was beyond her training, experience, or competence; specifically, she failed to refer her client to an appropriate practitioner who had the proper training, experience, and/or competence to adjust her client's medications.

11. Respondent is subject to discipline pursuant to Section 12-43-222(1)(m), C.R.S., because she failed to obtain a consultation or perform a referral when she should have, which was not consistent with generally accepted standards of care; specifically, she failed to refer her client to an appropriate practitioner who had the proper training, experience, and/or competence to adjust her client's medications.

12. Respondent is subject to discipline pursuant to Section 12-43-222(1)(p), C.R.S., because she failed to comply with any of the requirements pertaining to mandatory disclosure of information to clients pursuant to Section 12-43-214; specifically, she failed provide her client with a mandatory disclosure statement, either verbally or written, which is in violation of Section 12-43-214.

INITIAL DECISION

When the Board has proven that a licensee has violated the licensing law, it may deny, revoke, or suspend such licensee's license. Section 12-43-223, C.R.S. The Board seeks an order revoking Respondent's license to practice as a professional counselor. Respondent failed to answer the Notice of Charges. There is thus no information before the Administrative Law Judge indicating that some sanction other than revocation of Respondent's license to practice as a professional counselor is appropriate in this case. Respondent's failure to participate in this matter demonstrates a lack of interest in maintaining her license to practice as a professional counselor. It is therefore the Initial Decision of the Administrative Law Judge that Respondent's license to practice as a professional counselor is revoked.

DONE AND SIGNED this 29th day of October, 2013.


ROBERT N. SPENCER
Administrative Law Judge